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Tax Parcel No.: 08-036.10-257

Prepared by and Return to:
COOCH AND TAYLOR
Steven H. Amick, Esq.
51 E. Main Street
Newark, DE 19711

MAINTENANCE EASEMENT AGREEMENT

THIS MAINTENANCE EASEMENT AGREEMENT (the "Agreement") is made and entered into this 18th day of February, 2000, by and between **HUNTER'S RIDGE MAINTENANCE ASSOCIATION**, a Delaware corporation ("HRMA"), and **PAUL SCHLOSSER**, of New Castle County, Delaware ("Schlosser").

WHEREAS, HRMA is the agency created by the original developer of the residential subdivision known as Hunter's Ridge, as shown on the Record Major Subdivision Plan of Hunter's Ridge, recorded January 12, 1989, in the Office of the Recorder of Deeds in and for New Castle County, State of Delaware, in Microfilm No. 9600, to administer and enforce certain restrictions and covenants and administer and maintain certain lands of Hunter's Ridge; and

WHEREAS, Schlosser is the owner of a certain piece or parcel of land with the improvements thereon erected situate in Mill Creek Hundred, New Castle County, Delaware, referenced by Tax Parcel No. 08-036.10-257, and more fully described in that certain Deed and recorded in the Office of the Recorder of Deeds in and for New Castle County, Delaware, in Deed Book 2236, Page 151, (the "Schlosser Land").

NOW, THEREFORE, *WITNESSETH*, that the parties hereto in consideration of the sum of One Dollar ($1.00), the receipt and sufficiency of which is hereby acknowledged, together with the mutual covenants, promises, conditions and stipulations contained herein, hereby agree as follows:

1. Schlosser hereby grants and conveys unto HRMA, its successors and assigns, a nonexclusive and perpetual maintenance easement for the purpose of installing, constructing, repairing, replacing, renewing, reconstructing, inspecting and maintaining an entrance sign and the landscaping over, across, on and under that portion of the Schlosser Land as shown as Parcel # 1 on the Maintenance Easement Plan of "Plan of proposed easement to be acquired by Hunter's Ridge Association for Entrance Signs", attached hereto and made a part hereof (the "Maintenance Easement Area").

NCC 04A 15:26 JN06'00 089 $.00 ST

WCC 04A 15:26 JN06'00 091 $.00 PC

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2. Schlosser further grants a right of access for maintenance and landscaping purposes over, across, on and under an additional portion of the Schlosser Land which land shall consist of a parcel of land beginning at the southwest corner of the said Parcel # 1 and extending northwesterly and along the northeasterly side of Ebenezer Church Road a distance of 300' to a point; thence northwesterly and perpendicular to the said northeasterly side of Ebenezer Church Road 15' to a point; thence southeasterly and parallel to the said northeasterly side of Ebenezer Church Road and distant 15 feet therefrom approximately 300' to the northwesterly corner of the said Parcel # 1; thence south 17°40'10" W 15' to the point and place of beginning. (Parcel # 1A

3. Both Parcel # 1 and Parcel # 1A shall be deemed portions of the Maintenance Easement Area.

4. HRMA, its successors and assigns hereby covenant and agree to pay all costs and expenses incurred in constructing and landscaping the Maintenance Easement Area including maintenance, repair and restoration of the Maintenance Easement Area and the construction and landscape materials and other related appurtenances contained therein.

5. HRMA shall comply with all applicable rules, laws and regulations regarding the repair, maintenance and use of the Maintenance Easement Area and will, at HRMA's own expense, obtain any required permits or licenses with respect to constructing and landscaping of the Maintenance Easement Area.

6. HRMA is the sole owner of the entrance sign, stone facing, footings that hold the sign, lighting, electric fixtures and all landscaping, planting and materials used to decorate the "Maintenance Easement Area".

7. HRMA is not responsible for snow removal and sanding of the sidewalk area in front of the Maintenance Easement Area.

8. Upon initiating any work permitted under paragraph 1 above, HRMA shall complete the same within a reasonable time.

9. Each party hereby covenants and agrees to indemnify and save the other, its officers, agents, employees, tenants, licensees, successors and assigns, harmless of and from any claim, cost, expense (including, without limitation, reasonable attorney's fees and litigation expenses), judgment action, violation, fine, or any other liability or demand whatsoever, arising from or in any manner connected with acts, conduct, errors or omissions by the other party, its officers, agents, employees, tenants, licensees, successors and assigns, with respect to the Maintenance Easement Area.

10. These covenants shall run with and bind upon the Schlosser Land, and shall bind the parties hereto and their respective heirs, successors in title, legal representatives and assigns.

IN WITNESS WHEREOF, the parties have executed this Agreement the day and year first above written.

HUNTER'S RIDGE
MAINTENANCE ASSOCIATION

By: ______________________
David Bonner, President

____
Witness

Attest: Winifred Y. Teachey
Secretary

[Corporate Seal]

____
Witness

______________________ (SEAL)
Paul Schlosser

New Jersey
STATE OF ~~DELAWARE~~)
Burlington
~~NEW CASTLE~~ COUNTY) : SS.

BE IT REMEMBERED that on this 13th day of March, 2000, personally came before me, the Subscriber, a Notary Public for the state and county aforesaid, David Bonner, President of Hunter's Ridge Maintenance Corporation, a corporation existing under the laws of the State of Delaware, party to this Agreement, known to me personally to be such, who acknowledged this Agreement to be his act and deed and the act and deed of the corporation, that the signature of the President thereto is in his own proper handwriting the seal affixed is the common and corporate seal of said corporation.

GIVEN under my hand and seal this 13th day of March, 2000.

Geraldine A. Gager
Notary Public
Print Name: Geraldine A. Gager
My Commission Expires:

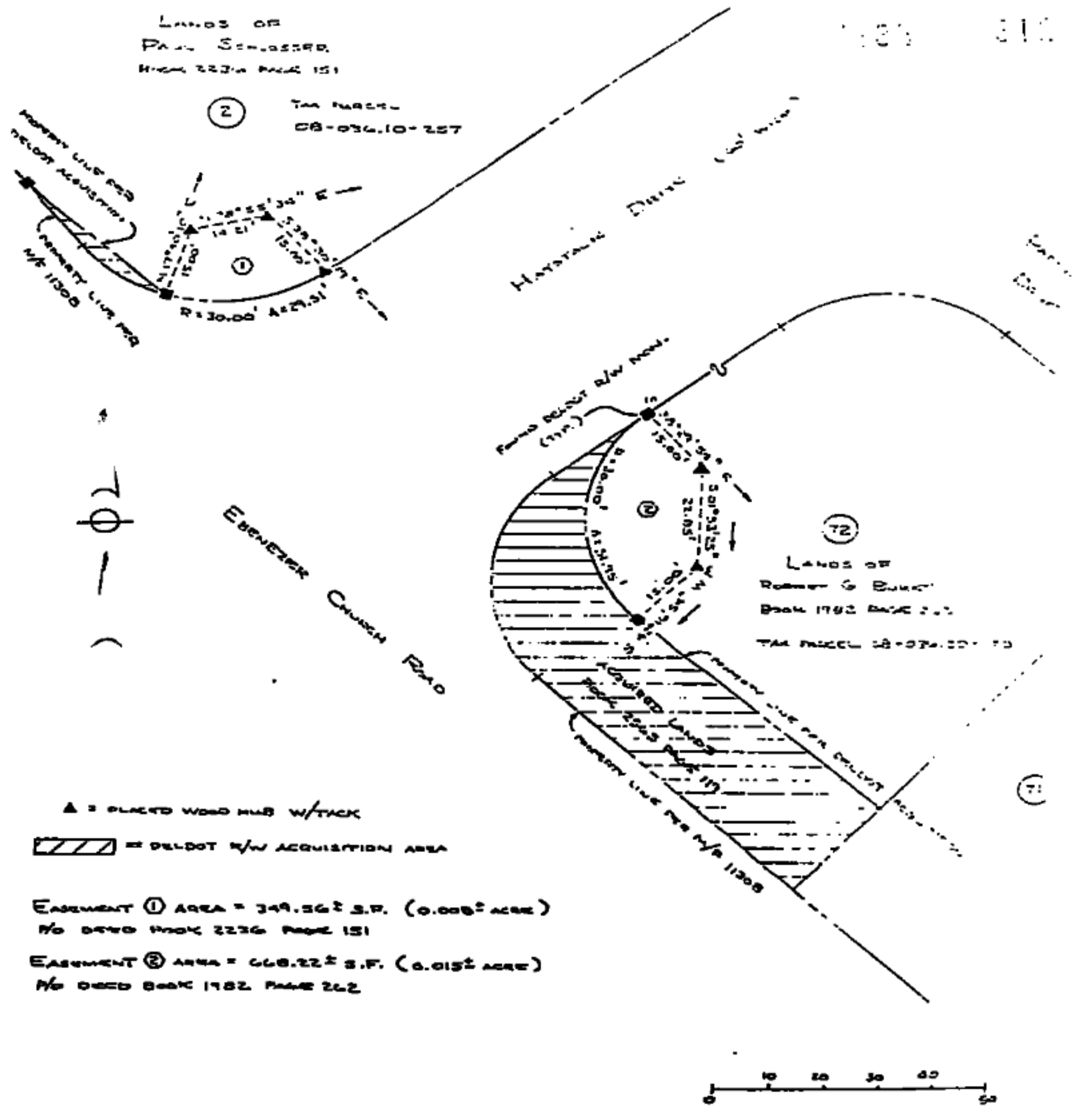
GERALDINE A. GAGER
Notary Public of New Jersey
My Commission Expires Sept. 23, 200

STATE OF DELAWARE)
: SS.
NEW CASTLE COUNTY)

BE IT REMEMBERED that on this 18 day of February, 2000, personally came before me, the Subscriber, a Notary Public for the state and county aforesaid, Paul Schlosser, party to this Agreement, known to me personally to be such, who acknowledged this Agreement to be his act and deed.

GIVEN under my hand and seal this 18 day of February, 2000.

Charles J. Gauber
Notary Public
Print Name: Charles J. Gauber
My Commission Expires: 10/5/00



▲ = PLACED WOOD HUB W/TACK

▨ = DELDOT R/W ACQUISITION AREA

EASEMENT ① AREA = 349.56± S.F. (0.008± ACRE)
R/O DEED BOOK 2236 PAGE 151

EASEMENT ② AREA = 668.22± S.F. (0.015± ACRE)
R/O DEED BOOK 1782 PAGE 262